



NON-DISCLOSURE AGREEMENT

EFFECTIVE DATE

This Mutual Non-Disclosure Agreement ("Agreement") is entered into as of the Effective Date by and between Eterflame Works ("Company") and the undersigned Recipient (collectively, the "Parties"). The Parties wish to explore a potential business relationship and may exchange confidential information in connection with that Purpose.

1. DEFINITION OF CONFIDENTIAL INFORMATION

"Confidential Information" means any information disclosed by one Party to the other, directly or indirectly, in writing, orally, or by inspection of tangible objects, that is designated as confidential or that reasonably should be understood to be confidential. This includes but is not limited to: business plans, financial data, client lists, technical specifications, creative concepts, project briefs, and proprietary processes.

2. OBLIGATIONS OF RECEIVING PARTY

Each Party agrees to: (a) hold the other Party's Confidential Information in strict confidence; (b) not disclose such information to any third party without prior written consent; (c) use the Confidential Information solely for the Purpose stated above; (d) protect the information with no less than reasonable care.

3. EXCLUSIONS

Confidential Information does not include information that: (a) is or becomes publicly known through no breach of this Agreement; (b) was rightfully known by the receiving Party prior to disclosure; (c) is rightfully received from a third party without restriction; (d) is independently developed without use of Confidential Information; (e) is required to be disclosed by law or court order, provided prompt written notice is given.

4. TERM

This Agreement shall remain in effect for two (2) years from the Effective Date, unless terminated earlier by mutual written consent of both Parties.

5. RETURN OF INFORMATION

Upon written request, each Party shall promptly return or destroy all Confidential Information received from the other Party, including all copies, notes, and derivatives thereof.

6. NO LICENSE

Nothing in this Agreement grants either Party any rights in or to the other Party's Confidential Information except as expressly set forth herein. No intellectual property rights are transferred by this Agreement.



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7. REMEDIES

Each Party acknowledges that any breach of this Agreement may cause irreparable harm for which monetary damages would be an inadequate remedy, and therefore agrees that the non-breaching Party shall be entitled to seek equitable relief, including injunction and specific performance, in addition to all other remedies available at law or in equity.

8. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of California, United States, without regard to its conflict of law provisions. Any disputes shall be resolved in the courts of competent jurisdiction in California.

9. ENTIRE AGREEMENT

This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior discussions, representations, and agreements. Any amendment must be in writing and signed by both Parties.

10. SEVERABILITY

If any provision of this Agreement is found to be unenforceable, the remaining provisions shall continue in full force and effect.

SIGNATURES

ETERFLAME WORKS

SIGNATURE

NAME

Cynthia Pinedo

TITLE

Founder & Creative Director

DATE

CLIENT / RECIPIENT

SIGNATURE

NAME

TITLE

COMPANY

DATE